

473(a)(1) "in furtherance of justice," and "upon any terms as may be just." Code of Civil Procedure section 576 grants the Court discretion to allow amendment of a pleading "at any time before or after commencement of trial, in the furtherance of justice." (Code Civ. Proc. § 576.) "California courts have 'a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.' [Citation omitted.]" (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.) (See also *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 [" '[A]bsent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail.' [Citation omitted.],"; *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760-761].)

"Ordinarily, courts should 'exercise liberality' in permitting amendments at any stage of the proceedings. [Citations omitted.] In particular, liberality should be displayed in allowing amendments to answers, for a defendant denied leave to amend is permanently deprived of a defense." (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.) (See also *Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 ["If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. [Citations omitted.]".])

Non-Opposition

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose the Motion is a deemed to be Defendant's consent to the granting of the Motion.

Applied here, the Court finds good cause to grant leave.

Ruling

For the reasons set forth above, Plaintiff's Motion for Leave to File a First Amended Complaint is **granted**. The Court will execute the Proposed Order lodged by Plaintiff on October 1, 2025. Plaintiff's First Amended Complaint shall be deemed filed on November 26, 2025. Defendants shall have thirty (30) days to file a responsive pleading. All parties and counsel are ordered to appear at the case management conference on February 5, 2026. No appearance is required at the hearing on November 26, 2025.

7. 9:00 AM CASE NUMBER: C24-03428
CASE NAME: HAROLD WOULD DEVELOPMENT, LLC VS. COLE RICHMAN
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFFS' REQUEST**
FOR PRODUCTION OF DOCUMENTS (SET ONE)
FILED BY: HAROLD WOULD DEVELOPMENT, LLC

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 7 and 8. The following discovery motions are scheduled to be heard on by the Court on November 26, 2025 at 9:00 a.m. in Department 16:

1. Plaintiff Harold Would Development, LLC's Motion to Compel Further Responses to Plaintiff's Request for Production of Documents, Set One and for Sanctions from Defendant Joshua Ferdman;
2. Plaintiff Harold Would Development, LLC's Motion to Compel Further Responses to Plaintiff's Specially Prepared interrogatories, Set One. for Production of Documents, Set One, and for Sanctions from Defendant Joshua Ferdman;

The Court also has scheduled hearings on Plaintiff's discovery motion in Department 57 before Commissioner Yamamoto for January 9, 2026 at 10:30 a.m:

3. Plaintiff Harold Would Development, LLC's Motion to Compel Specially Prepared Interrogatories, Set Two, and for Sanctions from Defendant Joshua Ferdman;
4. Plaintiff Harold Would Development, LLC's Motion to Compel Response to Form Interrogatories, and for Sanctions from Defendant Joshua Ferdman;
5. Plaintiff Harold Would Development, LLC's Motion for Deemed Admissions and for Sanctions from Defendant Joshua Ferdman;

The Court vacates all five (5) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all discovery motions, filed by the Parties in this litigation as set forth in this tentative ruling.

Background

This is a straightforward matter for damages following the abandonment of a commercial lease. Plaintiff Harold Would Development, LLC is the owner and landlord of commercial premises located at 1545 Locust Street, Walnut Creek, CA ("Premises"). Defendants Cole Richman and Joshua Ferdman are the signatory and tenants under a lease signed on August 10, 2022. Defendant Ferdman's company JM Bullion, LLC, a Wyoming corporation, is also a lease guarantor. After Plaintiff filed an unlawful detainer complaint against the defendants, they abandoned the Premises, and Plaintiff then recovered possession of the Premises pursuant to Code Civ. Pro. § 1951.35. Plaintiff filed this action for damages against all defendants on December 18, 2024.

Plaintiff propounded Discovery on Defendant Joshua Ferdman. Plaintiff claims that the responses prepared by Defendant are either incomplete and require further responses or, for the motions to be heard on January 9, 2025, responses were not served at all. Defendant claims that he prepared

responses, without objections, to the discovery which is the subject of the November 26, 2026 hearing. Plaintiff disputes that the responses were complete.

Analyses

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. “Motions to compel should be considered a last resort when trying to prepare a case for trial.” California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, “trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes.” California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before Plaintiff filed its motions.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues, require discovery reference. Cal. Code of Civ. Proc. Section 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

The Court finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court makes this finding on the grounds that there are five (5) pending discovery motions on calendar in the matter, scheduled for November 26, 2025, January 9, 2026. These motions and opposition filed to date consists of over five hundred pages. The Court finds that Counsel are unable to effectively meet and confer to arrive an informal resolution of the discovery disputes.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

Ruling

Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on November 26, 2025, and January 9, 2026, and any and all subsequently filed discovery motions. The hearing on these discovery motions are vacated from Department 16 and 57's calendar and are referred for further hearing to the Discovery Referee.

2. By no later than December 5, 2025, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by December 5, 2025, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Monday, December 8, 2025. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.

4. Defendants' Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.

5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for November 26, 2025 and January 9, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.

6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

8. 9:00 AM CASE NUMBER: C24-03428

CASE NAME: HAROLD WOULD DEVELOPMENT, LLC VS. COLE RICHMAN

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S SPECIALLY PREPARED INTERROGATORIES (SET ONE)**

FILED BY: HAROLD WOULD DEVELOPMENT, LLC

TENTATIVE RULING:

See Line 7, above.